

Analysis

While Plaintiff served notice of the Motion on a purported mail address for the Defendant, the Defendant was never served with process, nor did the Defendant file anything in this matter. Thus, service is incomplete.

However, the court finds no prejudice to defendant in proceeding with this Motion.

Section 473(d) of the CCP permits a trial court to set aside any void judgment.

The filing of a claim in bankruptcy court renders an automatic stay of any collections matter that commenced before the filing of the bankruptcy claim. *11 U.S.C. Section 362*.

Thus, the instant matter should have been stayed and the judgment should never have issued.

Disposition

Plaintiff's Motion is granted.

This case is dismissed without prejudice.

12. 9:00 AM CASE NUMBER: L25-13185
CASE NAME: CAVALRY SPV I, LLC AS ASSIGNEE OF CITIBANK, N.A. VS. DAVID GASCA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GASCA, DAVID A

***TENTATIVE RULING**

Defendant filed a Motion to compel arbitration and stay proceedings. The Motion is unopposed. Defendant timely served notice of the Motion and the Motion on the Plaintiff.

Background

The Complaint in this matter, filed by Plaintiff on 11/8/25, included an attachment of the purported agreement between the parties. See Attachment A, section on Arbitration. This agreement appears to contain an arbitration clause, which reflects that a party may request arbitration at any time by filing a motion to compel arbitration. The section also makes clear that the parties will lose the right to litigate after the arbitration clause is triggered.

Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ.

Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

It is the moving party's burden to prove the existence of such an agreement. *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.

In the instant matter, the court takes judicial notice of the Complaint and its exhibits. These exhibits demonstrate, by a preponderance of the evidence, the existence of an arbitration clause, and also that Defendant has properly triggered this clause by virtue of this Motion.

Disposition

Defendant's Motion is granted.

The instant matter will be stayed and calendared for a future CMC to check on the status of the arbitration.

The Court will file the Order and notify the parties of the future CMC date.

Courtroom Clerk's Session

13. 1:30 PM CASE NUMBER: RS25-0934
CASE NAME: CHEER WISH INC. VS. KENNETH EDGERLY
JURY TRIAL
FILED BY:
TENTATIVE RULING:

14. 1:30 PM CASE NUMBER: RS26-0041
CASE NAME: JAIME CHAVEZ VS. JAVIER LOPEZ
JURY TRIAL
FILED BY:
TENTATIVE RULING: